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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 1965/37 - 2016 මැයි මස 06 වැනි සිකුරාදා - 2016.05.06

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PART I : SECTION (I) — GENERAL

Government Notifications

THE CONSTITUTION OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

Delegation of Powers by the National Police Commission in terms of Article 155J

BY virtue of the powers vested in the National Police Commission in terms of Article 155J of the Constitution of the Democratic Socialist Republic of Sri Lanka, the said National Police Commission does hereby -

1. Delegate to Inspector General of Police and other Police Officers in terms of Article 155J specified in Column III of the Schedule hereto, its power of appointment, promotion, transfer, disciplinary control and dismissal as are specified in Column II of the Schedule hereto, in respect of the categories of Police Officers as are specified in Column I of the Schedule hereto.

Provided that in the event of any question arising in respect of any delegation or as to the implementation of delegation made by the National Police Commission so made, the decision of the National Police Commission shall be final and conclusive.

Provided further that, if any of the Police Officer specified in Column III is the complainant or a witness or a potential witness at any disciplinary inquiry against a police officer specified in Column I, the National Police Commission shall notwithstanding any delegation which may have been made by it, continue to exercise its power of appointment, promotion, transfer, disciplinary control and dismissal as are specified in Column II of the Schedule hereto as if no delegation in respect thereof had been made.

2. Specify that in the exercise of the powers herein delegated, Inspector General of Police and the other police officers to whom such powers are delegated shall at all times comply with the Procedural Rules, in respect of appointment, promotion and transfer of police officers, made by the National Police Commission in terms of Article 155G of the Constitution and also with such conditions and any Rules, Regulations and other Procedures which the said Commission may from time to time determine :



Provided that till such time as the Commission promulgates any Rules, Regulations or Procedure in terms of Article 155G of the Constitution in respect of matters not provided in the said Procedural Rules, all other Rules, Regulations and Procedures relating to police service as were in force on the date of the coming into operation of the 19th Amendment to the Constitution, shall *mutatis mutandis* continue to be in force and apply to the Police Service as if they have been made or provided by the National Police Commission.

3. Exercise directly in respect of the police officers not specifically mentioned in the Schedule hereto, the powers vested in it in terms of Article 155G of the Constitution :

4. Specify that this delegation will take effect from 4th of November 2015.

By order of the National Police Commission.

Prof. S. T. HETTIGE,
Chairman,
National Police Commission.

Office of the National Police Commission,
Block 09, BMICH,
Colombo 07,
25th April 2016.

SCHEDULE

<i>Column I In respect of Categories of Officers</i>	<i>Column II Powers delegated</i>	<i>Column III To whom the powers are delegated</i>
Rank of Chief Inspector of Police and below (excluding officers in Charge of Police Stations)	(i) Appointment and Promotion according to Schemes of Recruitment/Service Minutes approved by the National Police Commission. (ii) Cancellation of enlistment or termination of service during the period of probation. (iii) Transfers according to schemes approved by the National Police Commission. (iv) Disciplinary Control and Dismissal (v) Interdiction (vi) Consideration of Appeals against Orders of Vacation of Posts	Inspector General of Police
Rank of Chief Inspector of Police and below (excluding officers in Charge of Police Stations and Officers in Charge of Functional Units)	(i) Transfers according to schemes approved by the National Police Commission. (ii) Disciplinary Control (iii) Interdiction (iv) Consideration of Appeals against Orders of Vacation of Posts	Inspector General of Police Senior Deputy Inspector General of Police within the purview of their administrative areas

SCHEDULE (Contd.)

<i>Column I In respect of Categories of Officers</i>	<i>Column II Powers delegated</i>	<i>Column III To whom the powers are delegated</i>
Rank of Chief Inspector of Police and Ranks below	(i) Confirmation of appointment after period of probation or acting period.	Inspector General of Police
	(ii) Acceptance or rejection of Letters of Resignation from service	Senior Deputy Inspector General of Police (Administration)
	(i) Extension of an officer's compulsory acting period up to maximum of 3 years, one year each time, after his promotion to the next higher Rank or Grade or Post. (ii) Extension of period of probation up to a maximum period of three years, one year each time, to complete the efficiency bar requirements	Inspector General of Police Senior Deputy Inspector General of Police (within the purview of their administrative areas)
Rank of Inspector of Police and Ranks below	(i) Transfers within the respective administrative area of the Senior Deputy Inspector General of Police (excluding Officers In Charge of Police Stations and Functional Units) according to schemes approved by the National Police Commission. (ii) Disciplinary Control within the purview of their administrative areas other than dismissal (iii) Consideration of appeals against orders of vacation of post (excluding Officers in Charge of Police Stations and Functional Units)	Senior Deputy Inspector General of Police
Rank of Inspector of Police and Ranks below	(i) Transfers within the respective administrative area of the Deputy Inspector General of Police (excluding Officers in Charge of Police Stations and Functional Units), according to schemes approved by the National Police Commission.	Deputy Inspector General of Police

SCHEDULE (Contd.)

<i>Column I In respect of Categories of Officers</i>	<i>Column II Powers delegated</i>	<i>Column III To whom the powers are delegated</i>
Rank of Inspector of Police and Ranks below	(i) Transfers within the respective administrative area of the Senior Superintendent of Police, (Superintendent of Police - Grade I) ; Superintendent of Police, (Superintendent of Police Grade II) (Excluding Officers in Charge of Police Stations and Functional Units) according to schemes approved by the National Police Commission	Senior Superintendent of Police (Superintendent of Police - Grade I) Superintendent of Police (Superintendent of Police - Grade II) (in charge of Division and directorates)
Rank of Inspector of Police and Ranks below	(i) Interdiction within the purview of respective administrative area (ii) Orderly Room Punishments within the purview of respective administrative area (excluding officers in charge of police stations and functional unites)	Senior Deputy Inspector General of Police Deputy Inspector General of Police Senior Superintendent of Police (Superintendent of Police - Grade I) Superintendent of Police, (Superintendent of Police - Grade II) Assistant Superintendent of Police

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